WC/2024/227 — PRE-CONFERENCE RESOLUTION PACKAGE

Draft correspondence to the Workers' Compensation Regulator | 17 October 2026

To: Ms Renee Matheson, Senior Appeals Officer, Workers' Compensation Regulator

Subject: WC/2024/227 — Proposed resolution of remaining documentary and factual issues before further case management

Dear Ms Matheson,

I refer to the Regulator's response to the notices to admit on 8 September 2026, its subsequent confirmations of documents on 23 September, 12 October and 16 October 2026, and the forthcoming second conference under s 552A.

I write to seek practical agreement on the remaining documentary and factual issues before further directions or case-management intervention become necessary. I enclose an updated schedule retaining all 39 entries in my 1 October schedule and adding Tabs 32A and 32B. This letter does not seek an admission of the ultimate statutory issue, clinical causation, or the truth of every statement within each document.

1. Admissions derived from material already disclosed by the Regulator

A substantial number of the 303 propositions in my notice were derived from documents previously disclosed by the Regulator, including payroll material disclosed in July 2025. The Regulator admitted 298 propositions in its 8 September response, subject to their exact wording. The subsequent reservation about the truth, relevance, admissibility and weight of documents does not itself withdraw those admitted propositions.

I therefore request confirmation of which documents in the enclosed schedule, and which other documents supporting admitted facts, were previously included in the Regulator's disclosure, requested or obtained by the Regulator, cited in Review Decision 69983, or relied upon in its statement of facts and contentions or witness outlines. Where the Regulator maintains a challenge to the use of an admitted fact drawn from its own disclosed records, please identify the fact number and the precise distinction being advanced.

2. Document authenticity and Tab 31

The original 1 October schedule recorded 25 documents admitted on 8 September, four confirmed on 23 September and ten outstanding. I understand that nine of the ten were confirmed on 12 October, including Tab 31; Tab 24 remains unconfirmed on the correspondence presently available to me. Tabs 32A and 32B were confirmed on 16 October. Please correct any status or characterisation in the annexure that you consider inaccurate.

In relation to Tab 31, please indicate separately whether facts 228–231, concerning the particular emergency-code entries for 17–19 March 2024, can now be admitted. If not, please distinguish any positive dispute about an entry from a position that independent proof is required. Please also confirm whether the MET call spreadsheet for 17–18 March 2024, identified as available by MSH in its 5 June 2026 disclosure (admitted fact 268), can be produced or otherwise made available.

3. Operative instruments, workplace context and actual objections

For the AO3 and AO4 role descriptions, the applicable roster/rest provisions, fatigue guideline, and pandemic-leave delegation, I rely on their operative status, scope and application to the relevant workplace and time, rather than on a general proposition that all their contents must be accepted as true. In particular, Tab 8A contains only the cover page of the fatigue guideline: the full operative text and scope remain to be established.

Please identify any actual dispute as to issue, effective period, scope or application of those instruments. For any proposed objection to a document, please identify the tab, passage, evidentiary purpose and whether the issue concerns relevance, admissibility, factual accuracy or weight. I acknowledge that the Regulator may reserve rights generally; the purpose of this request is to determine which objections are in fact proposed.

4. Regulator reliance and the pleaded management actions

The Regulator's own Review Decision 69983, amended disclosure list, pleadings and outlines of evidence form part of the procedural record. Where the Regulator relies on a document or event to support an explanation of management conduct but opposes my reliance on the same material for chronology, notice, operational duties or response times, please identify the proposed distinction. In particular, please state which findings of Review Decision 69983 are positively disputed, as

distinct from merely not conceded in a hearing de novo.

Please also identify, by stressor and action, the management conduct relied upon as reasonable under s 32(5)(a), and the facts and documents said to support that contention, without requiring any concession on the ultimate question.

5. Proposed resolution without directions

I propose that the parties exchange corrections to the enclosed schedule and a concise list of genuinely outstanding issues before the further conference. An agreed status and tender list, an answer concerning facts 228–231, and identification of any specific documentary objections may remove the need for directions on those matters. If agreement cannot be reached, I will raise the discrete unresolved issues at the conference and seek the Commission’s guidance as appropriate.

Please provide a substantive response before the conference if practicable, or advise when one can be provided. I do not treat non-response as agreement.

Yours sincerely,

Cory Lea Shepherd | Appellant, self-represented

ANNEXURE A — UPDATED DOCUMENT AND ISSUE-NARROWING SCHEDULE

Based on the 39-entry schedule accompanying the 1 October 2026 correspondence, updated for subsequent confirmations. “Origin/type” is not proof that the Regulator disclosed or relied on the item. The original disclosure index has not yet been reconciled entry by entry.

Status overview

39 original entries: 25 admitted 8 September; 4 confirmed 23 September; 10 outstanding on 1 October. Nine of the ten were reportedly confirmed 12 October. Two added entries (32A and 32B) confirmed 16 October. Tab 24 is the only original entry for which a later confirmation is not established by the records reviewed. Tab 32B duplicates Tab 29. Authentication or veracity confirmation is not necessarily an admission of every recorded event.

Key to proposed use: employment duties; management directions and responses; recorded chronology; payroll/leave transactions; operational code activity; employer standards and delegated authority. Any additional proposition requires a specific supporting admission or document passage.

Tab	Document / date	Origin / source type	Proposed evidentiary use	Status
1A	Stibbard: Hello & Update — 18 Jul 2023	Employer operational email	Database access; operational changes	Admitted 8 Sep
1B	Taylor to Reese: Communication Book Update — 6 Jun 2023	Employer management correspondence	Communication book, management response	Admitted 8 Sep
2	Increase of hours and Workplace issues chain — 7–10 Aug 2023	Employee/management correspondence	Notice of concerns; management response	Admitted 8 Sep
3	Reese email and HR Policy E12 — 29 Aug–8 Sep 2023	Employer correspondence/policy	Grievance pathway; employer standards	Admitted 8 Sep
4	Request to Increase Working Hours to Full Time Rotational Roster — 7 & 31 Aug 2023	Employment correspondence	Working-hours requests and responses	Admitted 8 Sep
7	Roster Concerns chain — 26 Apr–8 May 2024	Employee/management correspondence	Fatigue notice and chronology	Admitted 8 Sep
8	Reese to Pritchard / HR; fatigue guideline attachment — 10 & 20 May 2024	Management correspondence	Management knowledge; guideline circulation	Admitted 8 Sep
8A	Cover page of QH fatigue guideline QH-GDL-401-3.3:2021 — 2021	QH guideline cover ONLY	Identifies guideline; full provisions require full copy	Admitted 8 Sep
8B	MASPER process emails and issue logs — 2–9 May 2024	Employer operational records	Misdirected contacts; reporting and response	Admitted 8 Sep
8C	Stibbard: Switchboard After Hours On Call Manager PP24 — 13 May 2024	Employer operational email	On-call management arrangements	Admitted 8 Sep
9	Taylor: Switchboard Manager – On call and Hours — 17 May 2024	Management email	Manager availability; response to concern	Admitted 8 Sep
9A	Office Hours and Departmental Directives chain — 15 May 2024	Employee/management emails	Request, response and direction to retract	Admitted 8 Sep
9B	Reese: Office Hours and Departmental Directives reply — 21 May 2024	Management email	Follow-up response and elapsed interval	Admitted 8 Sep
10	Taylor: Sick leave 14.05.24 — 14–15 May 2024	Management correspondence	Sick leave and management handling	Admitted 8 Sep
11	Integrated Respiratory Service / Switchboard / Taylor emails — 15 & 20 May 2024	Clinical-service and management emails	Contact directory concern; escalation; response	Admitted 8 Sep
12	Corey Shepherd Pay issues thread — 3–13 May 2024	Payroll and management emails	Payroll instructions; unresolved chronology	Admitted 8 Sep
13	Taylor: Pay issues reply — 21 May 2024	Management email	Subsequent payroll response	Admitted 8 Sep

Tab	Document / date	Origin / source type	Proposed evidentiary use	Status
14	Taylor: Validation of Claims older than 3 months — 28 May 2024	Management email	Later validation step; payment delay	Admitted 8 Sep
15	myHR submissions report (MSH Item 11) — Feb–May 2024	Employer system extract	Submission status and payroll chronology	Admitted 8 Sep
16	QH Leave Takings Report (MSH Item 15) — 19 Mar 2024	Employer system extract	Recorded leave during relevant period	Admitted 8 Sep
25	Review Decision 69983 — 24 Oct 2024	Regulator review decision	Regulator reasoning and procedural history; not binding	Admitted 8 Sep
26	Appellant first notice to admit facts — Before 18 Feb 2026	Party procedural document	Earlier factual propositions	Admitted 8 Sep
27	Regulator response to first notice — 18 Feb 2026	Regulator procedural response	Express earlier admissions and disputes	Admitted 8 Sep
28	myHR leave request history (MSH Item 11) — 20 Feb–1 Mar 2024	Employer system extract	Pandemic leave submission/decline/approval	Admitted 8 Sep
29	HR sub-delegation: Paid Special Pandemic Leave — Effective 5 Dec 2022	Employer delegation instrument	Delegated authority for leave decisions	Admitted 8 Sep
6	Taylor: Afterhours Oncall Process – Switchboard — 15 Apr 2024	Management operational direction	Effective date; consultation/implementation	Confirmed 23 Sep
20	Metro South CE disclosure letter K-LM26/729 — 5 Jun 2026	MSH disclosure to Commission	Employer position on records and fatigue systems	Confirmed 23 Sep
30	Taylor: What's Chloe's Hours?! — 23 Aug 2023	Management correspondence	Availability and operational expectations	Confirmed 23 Sep
30A	Taylor: Good morning Team — 18 Jun 2024	Management correspondence	Context; precise evidentiary purpose to verify	Confirmed 23 Sep
1	AO3 Administration Officer, Switchboard role description — Undated	Employer role description	Assigned duties; 24/7 shift work; patient safety	Outstanding 1 Oct; 12 Oct: veracity confirmed
5	Taylor: Approved – Permanent Full Time FTE — 27 Sep 2023	Management correspondence	Employment hours and approval	Outstanding 1 Oct; 12 Oct: veracity confirmed
17	Movement form signed by employer delegate — 27 Feb 2026	Employer personnel form	Employment status and delegate actions	Outstanding 1 Oct; 12 Oct: veracity confirmed
18	Movement form signed by employer delegate — 17 Apr 2026	Employer personnel form	Employment status and delegate actions	Outstanding 1 Oct; 12 Oct: veracity confirmed
19	Movement form signed by employer delegate — 9 Jun 2026	Employer personnel form	Employment status and delegate actions	Outstanding 1 Oct; 12 Oct: veracity confirmed
21	Forrest HR email to Appellant — 7 Jul 2026	Employer HR correspondence	Scope of eight-hour swap agreement	Outstanding 1 Oct; 12 Oct: veracity confirmed
22	Proposed Switchboard Rosters consultation paper — Nov 2024	Employer consultation paper	Later roster consultation; contextual comparison	Outstanding 1 Oct; 12 Oct: veracity confirmed
23	Proposed Rosters consultation outcome — Dec 2024	Employer consultation record	Later changes; contextual comparison	Outstanding 1 Oct; 12 Oct: veracity confirmed
31	2024 Emergency Code Register, March sheet — 16–20 Mar 2024	Employer operational register	Recorded code activity; facts 228–231 unresolved	Outstanding 1 Oct; 12 Oct: veracity confirmed; events not admitted
24	Moran, Together Queensland: Roster Feedback for Delegates — 3 Nov 2025	Union/employee correspondence	Later roster concerns; contextual corroboration	Outstanding 1 Oct; No subsequent confirmation verified
32A	AO4 Manager Switchboard Services role description — Produced 5 Jun 2026	MSH-produced employer role description	Manager duties and accountability	Added later; 16 Oct: veracity confirmed
32B	Pandemic leave HR sub-delegation (same instrument as Tab 29) — Produced 5 Jun 2026	MSH-produced employer delegation	Authority; duplicate of Tab 29, not independent proof	Added later; 16 Oct: veracity confirmed

ANNEXURE B — REGULATOR DISCLOSURE / RELIANCE RECONCILIATION

The original Annexure A is a list of documents submitted for admission, not a verified inventory of the Regulator's disclosure. The following records warrant direct reconciliation against the Regulator's amended List of Documents, July 2025 disclosure bundle, Review Decision, pleadings and witness outlines. No unsupported claim of Regulator provenance is made.

Regulator payroll disclosure — July 2025

Expressly referred to in the Second Amended Form 9A; identify exact bundle items and related admitted facts, especially payroll and leave chronology.

Verification position: Disclosure and item numbers to be verified.

Review Decision 69983 — Tab 25

Regulator-authored decision; identified as item 4 of the Regulator's amended List of Documents in the medical schedule. Compare its express findings to the pleaded defence.

Verification position: Regulator origin and list reference identified; actual objections to findings to be specified.

Regulator witness outlines — 24 September 2026

Outlines of Taylor, Reese, Wright and Earl; identify documents referenced and explanations about roster human error and leave declines.

Verification position: Regulator-served outlines; outlines are not themselves sworn evidence.

MSH disclosure — Tab 20

Chief Executive letter to Commissioner Dwyer of 5 June 2026; statements on fatigue systems and availability of MET call spreadsheet.

Verification position: MSH origin; not automatically Regulator-disclosed.

MSH system extracts — Tabs 15, 16, 28

myHR submissions, leave takings and leave request history identified as MSH items; reconcile against the Regulator's disclosure copies and admitted fact numbers.

Verification position: Employer system origin; Regulator acquisition unverified.

Employer operational documents — Tabs 1, 8A, 8B, 11, 21, 31, 32A/B

Role descriptions, fatigue guideline cover, operational emails/register, HR advice and delegation. Identify any corresponding disclosure item and actual reliance.

Verification position: Do not assume every item was supplied by the Regulator.

ANNEXURE C — PROPOSED RESPONSES TO CLOSE THE ISSUES

A. Source and reliance

For each Annexure A entry and other document underpinning admitted facts, mark: Regulator-disclosed (with disclosure item), Regulator-cited (with paragraph), MSH-produced, Appellant-supplied, or not yet established. More than one category may apply.

B. Authenticity

Confirm the later documentary admissions, and state whether Tab 24 can be admitted for authenticity or tendered by agreement.

C. Emergency events

Answer facts 228–231 entry by entry; identify any actual dispute about date, time, event or classification; confirm availability/production position for MET spreadsheet.

D. Workplace instruments

Identify any contested effective date, application or operative provision of AO3/AO4 roles, fatigue guidance, rostering arrangements or pandemic leave delegation.

E. Relevance and objections

For each intended objection, specify document, passage, evidentiary use and ground. Distinguish legal objection from contest over factual inference or weight.

F. Reasonable management action

Identify the action relied upon under s 32(5)(a), the particular admitted facts accepted about it, and any remaining contrary factual case. Leave ultimate statutory findings to Commission.

Preparation and accuracy note

This is a proposed pre-conference resolution document. The original Regulator disclosure index and complete July 2025 payroll bundle were not available for direct line-by-line comparison in preparing it. Accordingly, the annexure expressly distinguishes established origin from provenance requiring verification. Dates and the 12/16 October confirmations should be checked against the underlying correspondence before service. No claim is made that a generic reservation is invalid or that silence constitutes an admission.